TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
APRIL 29, 2019
MINUTES

Green arrows in Minutes are hyperlinks to the recording.

Attachment 1—Staff Report

Present:Joseph Belton, Chair, David Rubin, Barry Wolff, Megan Finch-Stevens, Stephen Wood, Stephen Duke, Glyn Cowden.
Staff:Michael Robertson, Kent Prause, Austin Rutherford, Kate Dolan, Julia Copeland, Andrew Tackett, Andrew Lindeman, Lynnette Lynes

Mr. Belton called the meeting to order at 6:00 pm.

A.Approval of Agenda
B.Approval of Minutes

Mr. Wolff moved for approval of the agenda and minutes. Mr. Cowden seconded the motion.

Mr. Wolff amended the motion to include the following correction:
- *Page 4, motion for item #3—Mr. Wood made the motion and Mr. Duke seconded the motion.*

Mr. Wood seconded the motion. All in favor.

A.Public Comment

Mr. Jimmy Bagwell, 41 Vincent Drive, expressed concern with the Earls Court project. He suggested that a mistake was made by the Board and that it is a travesty with the development of that neighborhood. He suggested that the parking should be reviewed.

There being no further comments, Mr. Belton continued with the agenda.

B.General Correspondence

No correspondence other than that already forwarded and included with the agenda.

C.Administration of Oath

Mr. Belton reviewed the procedures with the public. He administered the oath to those speaking.

D.Business

1.Case V-13-19, 440 Venning Street, TMS# 532-01-00-182, Request for a relief from the strict application of §156.110 (A)(3) to allow a shipping container as an accessory storage building.

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Sam Halls, owner, reviewed the request with the Board.

There being no comments, Mr. Belton closed public comment.

Mr. Belton stated that there was a request for an accessory structure request granted on the condition that a shipping container was not used, but a storage building built and asked for the reason for the change. Mr. Halls answered that there was an misunderstanding with what should be submitted for approval at the last meeting, so this is the correct request. He stated that there would be a pitched roof constructed so that it looks more like a constructed structure and would be sufficiently screened.

Mr. Wolff asked if a 40 foot container is proposed. Mr. Halls answered in the affirmative, but if a smaller container is desired, he can do a smaller container. Mr. Wolff expressed concern with having a shipping container. He suggested that if approved, it should be better screened.

Mr. Cowden asked if the container would be seen from the street. Mr. Halls answered that it would be sufficiently screened.

Mr. Belton expressed concern that the previous approval was granted with the condition that there be a storage building constructed. He asked the reason for the change. Mr. Halls answered that if constructed, it would be an open structure. He stated that they would like to have something that would provide better shelter for the contents.

Ms. Finch-Stevens asked what surrounds this property. Mr. Halls answered that it is residential property. Ms. Stevens asked if the shipping container has been purchased. Mr. Halls answered in the negative. Ms. Stevens asked if it would be screened, fenced and have a pitch roof. Mr. Halls answered in the affirmative.

▶ *Mr. Wood moved for denial of the request based on the findings that a shipping container is prohibited under the ordinance and the request does not meet the hardship criteria. Mr. Duke seconded the motion. All in favor.*

2. Case V-14-19, 714 Cherry Street, TMS# 532-06-00-236, Request for relief from the strict application of §156.224 to allow the removal of an historic water oak tree.

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

Ms. Abby Baines, owner, reviewed the request with the Board. She stated that she is amenable to mitigation of the tree.

Mr. Belton asked if an arborist letter was submitted. Ms. Baines answered in the negative.

There being no comments, Mr. Belton closed the public hearing.

▶ *Mr. Wolff moved for approval of the request based on the findings that the tree is a hazard with 50% mitigation required. Mr. Cowden seconded the motion.*

Mr. Belton suggested that the condition of the tree should be documented by a professional.

Mr. Wolff agreed that as a rule, there should be an arborist report. He suggested that there should also be an arborist report from the Town as well.

▶ *Mr. Belton called for a vote on the motion. All in favor.*

3. Case V-15-19, 299 Bampfield Drive, TMS# 514-08-00-129, Request for relief from the strict application of §156.224 to allow removal of historic tree

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

Ms. Patty Wilborn, reviewed the request with the Board. She provided a letter from the neighbor in favor of the request.

Mr. John Curillo, 322 Molasses Lane, expressed opposition with the request to remove the tree. He suggested that the request does not meet

all the criteria for a variance and the tree should not be allowed to be removed.

There being no further comments, Mr. Belton closed the public hearing.

Mr. Belton asked if there is an arborist report. Ms. Wilborn answered in the negative.

Mr. Wolff suggested that the proposed accessory dwelling unit (ADU) would not meet the current square footage requirements. He asked if an addition could be constructed without impeding any trees. Ms. Wilborn answered that the desire is to have a separate structure. She also suggested that if attached to the main structure, it would impede the flow of the backyard.

Ms. Stevens asked the square footage of the existing home. Ms. Wilborn answered that it is approximately 3,000 square feet.

Mr. Wood asked if the owners would be willing to restrict the ADU from being utilized as a short-term rental. Ms. Wilborn answered that she is not certain, but the owner might be amenable to that restriction.

Mr. Belton expressed concern that the property is not unreasonably restricted.

▶ *Mr. Wood moved for denial of the request based on the findings that there is no hardship and if denied, it would not unreasonably restrict the use of the property. Mr. Wolff seconded the motion. All in favor.*

4.Motion to Restore Case A-1-19 to agenda and set for hearing on April 29, 2019.

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Ben Traywick, representative for appellant, asked if a consent motion to restore the case could be granted.

▶ *Mr. Wolff moved to restore case A-1-19. Mr. Rubin seconded the motion. All in favor.*

5.Motion to Dismiss Case A-1-19.

Mr. Robertson reviewed the request with the Board (attachment 1).

Mr. Andrew Lindeman, attorney for the respondents, reviewed the request with the Board. He stated that they are requesting the case be dismissed and reviewed these reasons with the Board.

Mr. Traywick, attorney for appellant, reviewed their reasons that the case should not be dismissed and their request is valid with the Board.

Mr. Hamlin OKelley, attorney for Earls Court, LLC, agreed with the Towns position that the application was not filed in a timely manner, the Board does not have jurisdiction to hear the appeal, and should be dismissed.

Mr. Ross Appel, representative for Earls Court, LLC, and Grahams Holdings, LLC, and stated that he agrees with Mr. OKelley in that the case should be dismissed.

There being no comments, Mr. Belton closed public comment.

Mr. Wood asked which meeting was held on Oct 31st. Mr. OKelley answered that he misspoke earlier and that it was a DRB meeting.

Mr. Belton asked Mr. Traywick what was the subject of the appeal. Mr. Traywick answered that it is the approval of the parking plan by the Zoning Administrator. Mr. Belton asked when the parking plan was approved. Mr. Traywick answered that he is not sure, but they received notice no sooner than November 28th. He stated that the lease was signed on November 27th and was part of the presentation at the DRB meeting. Mr. Belton asked if the subject matter of the appeal is a memo from Mr. Prause that was provided to DRB at their October 31st meeting. Mr. Traywick answered in the affirmative and stated that the leases were negotiated between the October and November DRB meeting. He suggested that parking plan could not be finalized until after the leases were negotiated. Mr. Belton asked if the DRB approval is being appealed. Mr. Traywick answered in the negative and stated that the parking plan and the leases with the parking plan included is what is being appealed.

Mr. Wolff asked if without the Cassina parking places, the parking plan could not be met and were not secured until the November DRB meeting, which is not proper. Mr. Traywick answered in the affirmative.

Mr. Wood asked what constitutes actual notice. Mr. Traywick answered that it is awareness of the fact in question. Mr. Wood asked if there is statutory or judicial evidence on the definition. Mr. Lindeman suggested

that actual notice is knowledge. He suggested that actual notice can be accomplished through Council. He suggested that the public meeting of DRB on Oct 31st would be considered notice and the appellants were present and participated in that DRB meeting. Mr. Wood asked if there is evidence that the appellants were in attendance at the meeting. Mr. Traywick answered in the affirmative. Mr. OKelley agreed that the appellants were present at the DRB meeting and provided public comment at the meeting.

Mr. Traywick stated that the memo differs from the lease agreement provisions. This error was not known until November 28th when the lease agreements were executed.

Mr. Appel noted that the application for DRB approval could not be submitted until the zoning requirements were met including the parking. He stated that he agrees that there was actual notice received when the DRB meeting was held.

Mr. Belton summarized that the appeal revolves around the fact that actual notice could not be received until after the lease agreements were executed. Mr. Lindeman stated that they disagree with the justification for the appeal. He stated that the analysis and conclusions of Mr. Prause was not contingent on the lease agreements being executed. He stated that the parking was analyzed based on what was submitted and based on the ULI parking standards. Mr. Belton asked if the report included specific parking numbers. Mr. Lindeman answered in the affirmative and Mr. Prauses recommendation was that the parking requirement had been met. He stated that the date of that meeting was the start date that should be used in determining the appeal timeframe. Mr. Belton asked if there was other information other than execution of the leases that occurred after the October DRB meeting. Mr. Lindeman answered in the negative.

Mr. Wolff asked if it is customary to issue approval before they are legally bound by contract. Mr. Lindeman answered that there is a difference from making a legal decision and executing a decision. He stated that the lease would not vacate the date the decision was made.

▶ *Mr. Wolff moved to convene for a short break to review the information submitted. Ms. Stevens seconded the motion. All in favor.*

The Board convened for a short break at 7:18 pm and reconvened at 7:25 pm.

▶ *Mr. Wolff moved for executive session for legal advice. Mr. Cowden seconded the motion. All in favor.*

The Board convened into executive session at 7:25 pm and reconvened at 7:44 pm.

There being no further comments, Mr. Belton closed the public hearing. hearing.

▶ *Mr. Wood moved for approval of the request for dismissal of Case A-1-19 based on the findings that §156.411(5)(A) stipulates that appeals must be filed thirty days from actual notice and that based on the testimony given the appellants and/or their attorneys were present at October 31, 2018 DRB meeting where Mr. Prauses memo dated October 29, 2018 was submitted and attached indicating that the parking requirement was met, which is actual notice; therefore, the request is untimely. Mr. Duke seconded the motion. Motion passed on a 5 to 2 vote with Mr. Rubin, Mr. Belton, Ms. Stevens, Mr. Duke and Mr. Wood in favor; Mr. Wolff and Mr. Cowden opposed.*

6. **Case A-1-19, 401, 402, 403, and 404 Patjens Lane, TMS# 532-01-00-245, Appeal of the Zoning Officials approval of the Earls Court Parking Plan which was erroneous and contrary to the provisions of Section 156.170-172, 156.310, 156.318, 156.411, 156.004, 156.008, 156.030, 156.100, 156.101; and related provisions. CORRESPONDENCE**

This case was dismissed.

7. **Case V-16-19, 1473 Indian Street, TMS# 532-01-00-055, Request for relief from the strict application of 156.225 to allow removal of historic tree. CORRESPONDENCE**

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Ken Rosenberg, applicant, reviewed the request with the Board. He distributed photos of the tree and letters of support from the neighbors for the Boards consideration.

There being no comments, Mr. Belton closed the public hearing.

Mr. Wolff asked if a Town arborist has reviewed the tree. Mr. Rosenberg answered in the affirmative and stated that following the inspection, he was told he would need to apply for a variance.

Mr. Belton asked if the foundation expert reviewed the tree. Mr. Rosenberg answered in the affirmative and stated that the report was

submitted for the Board.

Mr. Wolff moved for approval of the request. Mr. Rubin seconded the motion. All in favor.

8. Case V-17-19, 114 Pitt Street, TMS# 532-01-00-087, Request for relief from the strict application of 156.226 to allow encroachment of patio into tree protection zone.

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Ms. Beth Rucker reviewed the request with the Board.

Mr. Belton asked if there are pictures of the proposed patio. Ms. Rucker answered that the patio has been installed.

Mr. Wood asked how this issue came before the Board. Ms. Rucker answered that they were not aware that there was an issue with the patio and that approval was needed prior to installing the patio. She stated that a neighbor informed them that they needed approval of the patio from the Town. Mr. Wood asked if there was concern expressed with the patio already constructed. Ms. Rucker answered in the negative.

Mr. Christopher Coleman, 118 Pitt St, quoted Joyce Kilmer. He stated that the yard is basically uninhabitable because of the tree. He suggested that the property is currently almost 80% pervious because of the amount of pavers that have been placed. He expressed concern that because of the significant coverage, it would damage the root system of the tree. He also expressed concern with drainage and runoff. He suggested that a drainage plan should be submitted and measures taken to preserve the tree if approved.

Mr. Bob Leonard, 1114 Rosewood Lane, stated that he has spoken with Town staff regarding the project. He stated that because the home is already at 40% lot coverage, it was recommended that the patio be sectioned so that there were pervious sections between the concrete.

There being no further comments, Mr. Belton closed the public hearing.

Mr. Belton expressed concern with there not being an arborist report from Town staff providing a recommendation.

Mr. Wolff asked if this could be deferred to receive an arborist report from staff. Mr. Belton suggested that the issue could be deferred to staff if

desired. Mr. Wolff asked what the recommendation was regarding the patio and the size of the patio. Ms. Rucker answered that 12x12 sections could be done if desired. She stated that she would be comfortable with a deferral if desired.

Mr. Hunter stated that it is 15x25 circle that was cut into sections to add the brick pervious sections.

▶ *Mr. Cowden moved for approval of the request based on the condition that there are cuts made to provide pervious surface. Mr. Rubin seconded the motion.*

▶ *Mr. Cowden moved to amend the motion to include that the Town arborist approve the pervious surface sections cut into the patio. Ms. Stevens seconded the motion. All in favor.*

9. **Case A-4-19, 1215 & 1219 Schirmer Ave., TMS# 532-07-00-271, 272, Appeal of the decision of the Zoning Official that referenced property is not subject to Mount Pleasant Ordinance number 14022 (passed 4.15.2014), was passed after the vesting period of the Sketch Plan of January 22, 2014. That the project became fully vested under the Vested Rights Act, SC Code § 6-29-1510, et seq., upon approval of the Final Plat on August 28, 2015, and its recording on August 31, 2015. Once Final Plat is approved, there is no two-year limit to obtain building permits for all of the lots.**

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1). Mr. Prause reviewed the justification of the Zoning Administrators decision with the Board.

Mr. Sid Boone, attorney for the applicant, reviewed the request with the Board.

There being no comments, Mr. Belton closed public comment.

Mr. Wolff asked if it the Towns position is that the vested rights could be extended. Mr. Prause answered in the negative and stated that the ordinance changed so that the vested rights could not be extended.

Mr. Wood asked if a one year extension is allowed. Mr. Prause answered that it is only allowed if the underlying ordinances were not changed that would disallow the extension. Mr. Wood asked if a building permit should be applied within the initial two-year period. Mr. Prause answered that the vested rights would be established with the building permit. Mr. Wood

asked if only the application needs to be applied for. Mr. Prause answered in the affirmative. Mr. Wood asked if an application was filed for these lots. Mr. Prause answered in the negative, but stated that the same master builder applied for building permits for other lots in the neighborhood. Mr. Wood asked if a building permit was submitted for these lots. Mr. Prause answered in the affirmative and stated that it was then that they were informed that the vested rights had expired.

Ms. Stevens asked after a final plat is approved and recorded, is there a time limit to apply for a building permit. Mr. Boone answered that there is no time limit once the final plat has been approved and recorded. He suggested that changes to the ordinance cannot eliminate the right for density and intensity of use that is approved at the time final plat is approved.

Mr. Wood asked if final plat allows rights to build regardless of changes to the ordinances and where this is referenced in the state statute. Mr. Boone answered that it is outlined in SC 6-29-1560 and read a portion for the Board. Mr. Belton suggested that this section was not applicable to the request as it pertains to areas that do not have land development ordinances. Mr. Boone stated that the vesting period and vesting rights have a different timelines. He stated that the final plat was approved within the two-year timeframe, so the final plat is vested. He suggested that a neighborhood cannot be built within the two-year timeframe.

Mr. Belton asked if the final plat includes individual lots. Mr. Boone answered in the affirmative. Mr. Belton asked what is the site specific development plan. Mr. Boone answered that it was the sketch plan. He stated that the final plat was approved within the two years from the sketch plan, so an extension of the vested rights was not needed. Mr. Belton asked if the final plat would replace the sketch plan. Mr. Boone answered in the affirmative. Mr. Belton referred to §156.049(C)(2) and asked if an extension was applied for within the two years. Mr. Boone answered that this section differs from the state statute. He stated that because the final plat was approved within the two year period, an extension was not needed. Mr. Belton asked if a building permit can be issued at any time after the final plat is approved. Mr. Boone answered in the affirmative and stated that if the final plat is approved within the two-year period from approval of sketch plan, the vesting point would apply.

Ms. Stevens asked if a building permit was applied for at some time in the future, would the regulations from the time the final plat was approved have to be applied. Mr. Boone answered that there are some land development requirements that might not apply, such as installation of

curb and gutter, sidewalks, etc. He stated that the vested right was received with the approval of the final plat.

Mr. Wolff suggested that an extension of vested rights was not applied for with in the appropriate timeframe. He suggested that a vested right extension should be applied for and approved in order to retain those rights.

Mr. Wolff moved for denial of the request based on the findings included in the staff report and an opportunity to extend the vested rights was not taken. Mr. Duke seconded the motion. All in favor.

10. Case V-18-19, 3033 Caspian Court, TMS# 583-03-00-313, Request for relief from the strict application of §156.224 et al, to allow removal of Historic Live Oak.

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Robert Young, representative for owner, reviewed the request with the Board. He stated that he has a letter from an arborist regarding the condition of the tree.

Mr. Bob Brimmer, 2380 Parsonage, was administered the oath. He thanked the Board for the work and efforts as members of the Board. He stated that he is a neighbor and suggested that he is comfortable with the request to remove the tree.

There being no comments, Mr. Belton closed public hearing.

Mr. Wood asked if there is a recommendation from staff. Mr. Robertson answered that staff is not required to provide a report. He suggested that by being before the Board would mean that Town staff was not able to approve the request.

Mr. Wolff suggested that the tree is not in good condition.

Mr. Wolff moved for approval of the request based on the findings that it meets the requirements for removal as indicated in the staff report and personal visual inspection. Mr. Duke seconded the motion.

Mr. Wood expressed concern that the request does not meet the criteria outlined by the state. He suggested that a hardship has not been met. He suggested that the Board should carefully apply the criteria for a variance to this and each case.

▶ *Mr. Belton called for a vote on the motion. Motion passed on a 5 to 2 vote with Mr. Wolff, Mr. Rubin, Mr. Cowden, Ms. Stevens, and Mr. Duke in favor; Mr. Belton and Mr. Wood opposed.*

11. Case V-19-19, 1503 Mathis Ferry Road, TMS# 559-00-00-072, Request for relief from the strict application of §156.201 and 156.107 (A)(2) to allow encroachment into bufferyard. CORRESPONDENCE

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Jeremy Tate, representative for the applicant, reviewed the request with the Board.

Mr. Rubin asked if the existing units would remain. Mr. Tate answered in the affirmative.

There being no comments, Mr. Belton closed public comment.

Mr. Wolff asked if this was previously a barn. Mr. Tate answered in the affirmative. Mr. Wolff asked if all permits were issued for previous work. Mr. Tate answered in the negative and stated that Town staff discovered the violation during an inspection. Mr. Wolff asked if all of the improvements to the property has been properly inspected by the Town. Mr. Robertson answered that this is currently in process. Mr. Wolff asked if the setback and buffer was changed with the construction of I-526. Mr. Robertson answered in the affirmative.

▶ *Mr. Rubin moved for approval of the request based on the findings that it is wasteland and there is a minimal encroachment based on the information included in the staff report. Mr. Cowden seconded the motion. All in favor.*

12. Case V-20-19, 1153 Six Mile Road, Fire Station 4, TMS# 558-00-00-926, Request for relief from the strict application of §156.106 (A) and §156.304 (C) to allow reduction of building setback from 30 feet to 15 feet on Sweetgrass Basket Parkway.

This item was withdrawn by staff.

13. Case V-21-19, 1489 Hindman Ave., TMS# 532-10-00-182, Request for relief from the strict application of §156.224 et al, to remove historic pecan tree.

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. David Price reviewed the request with the Board. He distributed a copy of the arborist letter for the Board to review.

There being no comments, Mr. Belton closed public hearing.

Mr. Cowden moved for approval of the request based on the findings that the tree is in decline as indicated in the arborist letter. Mr. Wolff seconded the motion. All in favor.

14. **Case V-22-19, 855 Von Kolnitz Rd., James B. Edwards Elementary School,** TMS# 559-00-00-064, Request for relief from the strict application of §156.310 (G)(4)(h) to allow 60-foot lighting poles for sports field.

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Bryant Stowe, landscape architect, reviewed the request with the Board.

There being no comments, Mr. Belton closed the public comment.

Mr. Rubin moved for approval of the request based on the findings included in the staff report and presentation. Mr. Duke seconded the motion. All in favor.

E.Approval of Final Orders

The Board signed final orders.

There being no further business, the meeting adjourned at 9:23 pm.

Submitted by,
L. Lynes
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